

24SMCV04716 24SMCV04716

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This is a fee motion in a Song-Beverly case. Plaintiff seeks about \$98,000 in lodestar fees and a 50% enhancement. Defendant opposes. Defendant agrees plaintiff is entitled to fees, but believes the fees are too high.

Plaintiff sets forth some significant rates. \$650/hour for the partner through 6/30/25, and \$750 after that. A senior attorney is billed at \$550 until 6/30 and \$670 after that. A more senior attorney is billed at \$700. And a second senior attorney is also billed at \$700. Plaintiff suggests that under the Laffey Matrix, the fees ought to be even higher. Plaintiff's counsel also states that these fees have been awarded by other courts.

The court will consider the Laffey Matrix, but as to fees awarded by other courts, given that plaintiff views it as relevant, the court will ask plaintiff's counsel to set forth the hourly rates that have been awarded in every contested Song-Beverly case litigated in Los Angeles over the last two years for the attorneys at issue. The court agrees with plaintiff's counsel that Song-Beverly cases are a specialty, and that it is appropriate to recognize that in setting the hourly rate. Defendant suggests the 2023 Real Rate Report. Given that, defendant suggests that the rates ought to be between \$295 and \$495/hour. However, this court has no idea how the rates in the Real Rate Report were derived or why the 2023 report is used rather than the 2025 report.

Equally to the point is the number of hours. About 100 attorney hours are logged on the case. And, as defendant notes, many of the hours are billed at high rates for tasks that ought to be handled by a paralegal or very junior lawyer.

Further, the defense suggests that there are generic entries, like reviewing the work of others or documents, and that some tasks—like drafting discovery—is really ministerial because it comes from the form file. The defense also questions whether 13 hours for the fee motion is proper. (Most plaintiff's firms charge 4 hours.)

The real problem is this.

The court has noticed a marked uptick in Song-Beverly fee motions. The plaintiff's bar has suggested that this is due to a concerted effort by the defense bar to make it more difficult and expensive for plaintiff to recover legitimate fees. And the court has seen examples of motions like that—where the plaintiff's proposed fee is pretty reasonable and the attacks seem to be not terribly well reasoned.

Where the court sees that, the court has awarded an enhancement for that reason alone, which the court did very recently. On the other hand, the court has heard from the defense bar that they are sick and tired of paying inflated bad faith fees and accuse the plaintiff's bar of padding the hourly rate and the number of hours. The court has seen that as well. Where that is found, not only does the court reduce the fees accordingly, the court also applies a negative enhancement to account for the lack of trust that the court has in plaintiff's time records.

The court has tried to encourage the parties to actually meet and confer about this. But what tends to occur is that the parties engage in a flea market tactic; they each throw numbers at each other with no real discussion as to why entries were made or the work actually done or why it was done.

For guidance, the court notes that defendants often attack work done before litigation. This court views such work as appropriate, though. Plaintiff's counsel is entitled to screen clients, and indeed they ought to do that in order to take cases with merit and refuse those without. That is perfectly reasonable and necessary. On the other hand, excessive "client conferences" even when nothing is happening in the case, or lots of time being billed on pleadings coming from the form file, or high billing rates for routine tasks (like reviewing a Notice of Remote Appearance) is something to which the court could understand a defendant looking askance. Having a senior attorney review a document that attorney will sign is appropriate, but ought to take very little time if another competent attorney drafted it. In any case, you get the picture.

The court sees no evidence that anyone had that kind of discussion here. Given that, the court will CONTINUE this motion to so allow.

The court does note that this bill is at the higher end of bills, although the court does appreciate that this case went into written discovery and was not resolved right at the start, as often happens. The court also notes that there was motion practice here, but sanctions were awarded in plaintiff's favor. The court assumes, therefore, that plaintiff is willing to reduce the fee award for time related to that motion.